

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 724

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO FOSTER CARE; PROVIDING LEGISLATIVE INTENT; AMENDING CHAPTER 12, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-1212, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING FOSTER CHILD SAFETY; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. LEGISLATIVE FINDINGS AND INTENT. The Legislature finds that children in foster care are among the most vulnerable individuals under the care and supervision of the Idaho Department of Health and Welfare. It is the intent of the Legislature to ensure their safety, health, and welfare by articulating certain protections guaranteed to such children. It is further the intent of the Legislature that this act govern the treatment and safety of children while in the care or custody of the state and not be construed to expand general government authority or diminish parental rights beyond what is necessary to ensure the safety, health, and welfare of the child.

SECTION 2. That Chapter 12, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-1212, Idaho Code, and to read as follows:

39-1212. FOSTER CHILD SAFETY. (1) All children placed in foster care shall have the following safety-related rights:

(a) The right to reside in a safe and healthy environment;

(b) The freedom from physical, sexual, emotional, or other abuse. This includes the freedom to be placed away from other children, siblings, or individuals known to pose a credible threat of physical or sexual abuse to the foster child, either because of the foster child's own risk factors or those of the other children, siblings, or individuals;

(c) The right to timely and appropriate medical assessments and forensic testing when a child discloses sexual abuse to a mandatory reporter, consistent with applicable Idaho law and mandatory reporting requirements;

(d) The right to adequate and appropriate basic essentials, including food, shelter, clothing, and personal necessities;

(e) The right to limit, restrict, suspend, or deny visitation by court order because visitation would be contrary to the safety and well-being of the child. Substantiated safety concerns shall be considered by the court to limit, restrict, suspend, or deny visitation. The court may consider any relevant factors, including:

(i) Safety and risk assessments;

(ii) Placement and supervision decisions;

(iii) Protective plans;

(iv) Medical, behavioral health, and developmental evaluations;
and

(v) Reunification plans and case plans; and

(f) The right to reasonable consideration of the child's safety during transitions between foster care placements when practicable and consistent with the safety of the child. Nothing in this paragraph shall be construed to delay an emergency placement or supersede a court order or immediate safety determination. In evaluating safety, the court may consider factors relevant to the child's circumstances, including age, developmental needs, emotional or behavioral health, prior trauma, and the reasons for the placement change.

(2) The department shall develop a written notice of, at a minimum, the rights enumerated in this section. The department shall provide each child with such written notice at the time of initial placement in foster care, at each placement change, and at least annually. Foster homes licensed by the department shall post the notice in a place where children have access. Failure to provide or post such notice shall not, by itself, create a cause of action or constitute a violation of law.

(3) The rights in this section are a broad expression of the rights of children in foster care, are not exhaustive, and shall be interpreted and applied consistent with the best interests of the child.

(4) Nothing in this section shall be construed to expand the authority of the state or the department beyond that which is otherwise provided by law or be construed to create a private cause of action or a cause of action against the state, the judiciary, the department, or any employee, agent, or contractor thereof. Implementation of this section shall occur through existing court proceedings and department processes and shall not require new enforcement mechanisms, agencies, reporting structures, or appropriations.

(5) Alleged violations of the rights enumerated in this section may be raised within the child's ongoing juvenile proceeding pursuant to chapter 16, title 16, Idaho Code, by the child's attorney, guardian ad litem, court-appointed special advocate, the department, or another party to the proceeding already granted standing under existing Idaho law or by a foster parent through any of the aforementioned. Reports or information submitted by a mandatory reporter pursuant to Idaho law may be brought to the attention of the court through any such party and considered by the court in determining whether a violation of these rights has occurred. Upon such notice, the court shall consider the allegation and may, within its discretion, order appropriate remedies within the juvenile proceeding to promote the safety and welfare of the child. Nothing in this subsection shall be construed to require the initiation of a separate action or to expand the jurisdiction of the court beyond existing law. Relief under this subsection shall be limited to corrective orders within the juvenile proceeding pursuant to chapter 16, title 16, Idaho Code.

(6) The department shall make reasonable efforts to ensure that all reports received pursuant to mandatory reporting laws related to a child subject to a juvenile proceeding pursuant to chapter 16, title 16, Idaho Code, are documented and made available for consideration by the court within that proceeding in a manner consistent with existing confidentiality, evidentiary, and due process requirements.

1 (7) Nothing in this section shall be construed to limit the ability of a
2 child, the child's representative, a foster parent, or a party to the juve-
3 nile proceeding pursuant to chapter 16, title 16, Idaho Code, to contact the
4 health and social services ombudsman regarding concerns related to the im-
5 plementation of this section. Any review or recommendation by the health and
6 social services ombudsman shall be advisory in nature and shall not create a
7 cause of action or alter the authority of the court or the department.

8 SECTION 3. An emergency existing therefor, which emergency is hereby
9 declared to exist, this act shall be in full force and effect on and after its
10 passage and approval.